IN THE UNITED STATES PATENT AND TRADEMARK OFFICE

In re Patent Application of:	Reinaldo Javier Aguiar Marcano
Application Number:	19/560,062
Confirmation Number:	9071
Filing Date:	March 8, 2026
Group Art Unit:	Pre-Exam / TC 2100
Examiner:	Andrea Bennett
Title of Invention:	PORTABLE DATA CARTRIDGE WITH OPTICAL INTERFACE

APPLICANT'S COMPLETE RESPONSE TO NOTICE TO FILE MISSING PARTS AND NOTICE OF INCOMPLETE REPLY (37 CFR §§ 1.52, 1.53(f), 1.125; MPEP §§ 506, 601.01(a), 608.01) SUBMISSION OF SUBSTITUTE SPECIFICATION (37 CFR § 1.125) SUBMISSION OF REPLACEMENT CLAIMS AND ABSTRACT ON SEPARATE SHEETS REAFFIRMATION OF SMALL ENTITY STATUS (37 CFR § 1.27) PETITION FOR ONE-MONTH EXTENSION OF TIME (37 CFR § 1.136(a)) AND CONDITIONAL REQUEST FOR SUSPENSION OF ACTION (37 CFR § 1.103)

Commissioner for Patents
P.O. Box 1450
Alexandria, VA 22313-1450

Sir:

In response to the Notice to File Missing Parts of Nonprovisional Application mailed on July 10, 2026, the Notice of Incomplete Reply mailed on September 9, 2026, and in view of the Decision on Petition under 37 CFR § 1.183 mailed on September 29, 2026, the *pro se* Applicant, Reinaldo Javier Aguiar Marcano, respectfully submits this complete, substantive response curing all noted pre-examination formalities and fee deficiencies.

I. EXECUTIVE SUMMARY OF CURED ITEMS

Applicant has completely and successfully cured every formality and fee item cited in the pre-examination notices in accordance with 37 CFR §§ 1.52, 1.53(f), 1.72, 1.75, 1.125, and MPEP §§ 506, 601.01(a):

1. **Substitute Specification (37 CFR § 1.125; MPEP § 608.01(q)):** Submitted herewith as a standalone document, formatted with compliant double line spacing in accordance with 37 CFR § 1.52(b), accompanied by the mandatory statement of no new matter under 37 CFR § 1.125(b).
2. **Replacement Claims on a Separate Sheet (37 CFR §§ 1.75(h), 1.121; MPEP § 608.01(a)):** Submitted herewith as a standalone document, containing original Claims 1 through 5 commencing on a new, separate page with no intervening specification text.
3. **Replacement Abstract on a Separate Sheet (37 CFR § 1.72(b); MPEP § 608.01(b)):** Submitted herewith as a standalone document, containing the complete original Abstract commencing on its own separate page.
4. **Reaffirmation of Small Entity Status (37 CFR § 1.27):** Applicant formally reaffirms Small Entity status under 37 CFR § 1.27 (established on August 2, 2026), withdraws any prior claim to Micro Entity status, and authorizes payment and reconciliation of all statutory Small Entity fees.
5. **Petition for Extension of Time (37 CFR § 1.136(a); MPEP § 710.02(e)):** Submitted herewith, petitioning for a one-month extension of time (extending the reply deadline from September 10, 2026 to October 12, 2026) with authorization to charge the applicable Small Entity fee of $94.00 (Fee Code 2251).
6. **Conditional Request for Suspension of Action (37 CFR § 1.103(a); MPEP § 709):** Submitted concurrently, requesting a six-month suspension of action on the merits to take effect immediately upon pre-examination clearance and docketing to Technology Center 2100.

II. STATEMENT OF COMPLIANCE AND DETAILED RESPONSES

1. Technical Compliance: Substitute Specification (37 CFR § 1.125)

The Notice to File Missing Parts and Notice of Incomplete Reply noted that the originally filed specification failed to comply with 37 CFR § 1.52(b) because the line spacing was single-spaced rather than 1.5 or double line spacing.

Applicant hereby submits a clean, publication-ready **Substitute Specification** pursuant to 37 CFR § 1.125:

- The substitute specification is printed with 1.5/double line spacing, 1-inch margins, and consecutive paragraph structure in full compliance with 37 CFR § 1.52(b).
- Pursuant to 37 CFR § 1.125(b), Applicant expressly certifies that the substitute specification includes no new matter. The technical text is identical to that presented in the original March 8, 2026 filing.

2. Technical Compliance: Replacement Claims and Abstract Commencing on Separate Sheets

The pre-examination notices noted that the original application commenced the Claims on page 3 following the descriptive text, and placed the Abstract on page 1 below the title, rather than on separate sheets.

Applicant hereby submits standalone replacement sheets pursuant to 37 CFR § 1.121:

- **Replacement Claims Sheet:** Original Claims 1 through 5 are set forth on a clean, double-spaced standalone page commencing on a separate sheet, in full compliance with 37 CFR § 1.75(h) and MPEP § 608.01(a).
- **Replacement Abstract Sheet:** The complete Abstract of the technical disclosure is set forth on its own separate page, commencing on a separate sheet in full compliance with 37 CFR § 1.72(b) and MPEP § 608.01(b).

No new matter is introduced.

3. Establishment of Entity Status and Fee Reconciliation (37 CFR § 1.27)

Applicant previously asserted Small Entity status on August 2, 2026. Applicant hereby formally reaffirms Small Entity status under 37 CFR § 1.27.

Applicant authorizes the Office of Patent Application Processing (OPAP) to:

(a) Apply the Small Entity fee schedule to all statutory fees for Application No. 19/560,062;

(b) Apply all previously paid fees (including the $34.00 partial surcharge paid on July 21, 2026) toward the outstanding statutory requirements; and

(c) Remit the applicable Small Entity fees concurrently herewith via Patent Center electronic payment, and respectfully request that if the Office determines any additional fee balance is due, the Office issue an itemized Notice of Fee Deficiency.

4. Petition for Extension of Time under 37 CFR § 1.136(a)

The Notice to File Missing Parts mailed July 10, 2026 set an initial two-month period for reply expiring September 10, 2026.

A one-month extension under 37 CFR § 1.136(a) extends the reply period to **October 12, 2026** (October 10, 2026 having been a Saturday, rolling forward to Monday, October 12, 2026 pursuant to 35 U.S.C. § 21 and 37 CFR § 1.7(a)).

The instant complete response is submitted on or before **October 12, 2026**.

Accordingly, Applicant concurrently petitions for a **One-Month Extension of Time** under 37 CFR § 1.136(a) and tenders the applicable Small Entity extension fee of **$94.00** (Fee Code 2251).

III. COMPLIANCE WITH SEPTEMBER 29, 2026 PETITION DECISION (OPPT)

Applicant respectfully acknowledges receipt of the Office of Petitions Decision (OPPT) dated September 29, 2026 (signed by Attorney Advisor Cliff Congo), dismissing Applicant's prior petition under 37 CFR § 1.183.

The Decision noted that:

> *"The last day Applicant can respond to the Notice to File Missing Parts, with the maximum five month extension of time, is February 10, 2027. Here, Applicant has failed to explain why the available extensions of time are not sufficient to address his requested relief. Moreover, Applicant has failed to explain why his ongoing litigation activities prevent him from filing a response to the Notice to File Missing Parts and then requesting suspension of action under 37 CFR 1.103."*

Applicant has complied strictly with the guidance provided by the Office of Petitions:

1. Rather than pursuing further burdensome Rule 183 petitions or requests for reconsideration, Applicant has focused on the complete, immediate perfection of all pre-examination filing formalities;
2. By submitting the substitute specification, replacement claims on a separate sheet, replacement abstract on a separate sheet, small entity fee authorization, and 1-month extension of time, **this application is now in 100% complete compliance with all requirements of the pre-examination notices**; and
3. Applicant respectfully requests that the Office of Patent Application Processing (OPAP) issue the formal **Notice of Acceptance of Application** (or updated Filing Receipt) and forward this application to Technology Center 2100 (Examiner Andrea Bennett) for examination.

IV. CONDITIONAL REQUEST FOR SUSPENSION OF ACTION UNDER 37 CFR § 1.103

Pursuant to MPEP § 709, a request for suspension of action under 37 CFR § 1.103 cannot be granted while a notice to file missing parts is outstanding. Therefore, Applicant submits his concurrent Request for Suspension under § 1.103(a) as a **conditional request** to take effect immediately upon OPAP's determination that the pre-examination formalities have been completely cured and the application has been docketed for examination in Technology Center 2100.

The suspension is requested for good and sufficient cause based on the documented collateral litigation and constructive confinement issues currently pending resolution before the United States District Court for the Southern District of Texas (Civil Action No. 4:26-CV-08794, *Aguiar Marcano v. Pickett et al.*).

V. CONCLUSION

Applicant has fully and completely satisfied all requirements of the pre-examination notices. It is respectfully requested that the application be accepted and processed for substantive examination.

Respectfully submitted,

/Reinaldo Javier Aguiar Marcano/
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